



POLICE DEPARTMENT

September 11, 2015

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Hector Martinez
Tax Registry No. 938950
67 Precinct
Disciplinary Case No. 2013-10266

The above-named member of the Department appeared before me on August 14, 2015, charged with the following:

1. Said Police Officer Hector Martinez, while assigned to the 45th Precinct, on or about and between May 12, 2012, and February 9, 2013, after having been directed by Lieutenant Edward Gonzalez and other members of Internal Affairs Bureau Group 22 to discontinue contact with Person A, did wrongfully and without just cause fail to comply with said lawful order.

P.G. 203-03, Page 1, Paragraph 2 - COMPLIANCE WITH ORDERS

2. Said Police Officer Hector Martinez, while assigned to the 45th Precinct, on or about and between May 12, 2012, and February 9, 2013, did associate with Person A, an individual reasonably believed to be engaged in, likely to have engaged in or to have engaged in criminal activity.

P.G. 203-10, Page 1, Paragraph 2 (C) - PUBLIC CONTACT

3. Said Police Officer Hector Martinez, while on duty and assigned to the 45th Precinct, on or about May 4, 2012, utilized a Department computer to access Department records which were not related to his assignment. (*Dismissed*)

P.G. 219-14, Page 1, Paragraph 2 - DEPARTMENT COMPUTER SYSTEMS

The Department was represented by Michael Martinez, Esq., Department Advocate's Office, and Respondent was represented by Pamela Naples, Esq.

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Respondent, through his counsel, entered a plea of Guilty to the subject charges and testified in mitigation of the penalty. A stenographic transcript of the mitigation record has been prepared and is available for the Police Commissioner's review.

DECISION

The Department moved to dismiss Specification 3. Respondent, having pleaded Guilty to Specifications 1 and 2, is found Guilty as charged.

SUMMARY OF EVIDENCE IN MITIGATION

This case involves criminal association between Respondent and a man named Person A. Respondent, who has been with the Department for 10 years, testified that he has known Person A for about 30 years. [REDACTED]

[REDACTED], and Respondent described Person A as [REDACTED]

[REDACTED] According to Respondent, he and Person A would see each other three or four times a week since childhood, and would be together at family functions as well. (Tr. 14-15)

Even as adults, Respondent would still see Person A about three times a week. They would socialize, hang out, and see each other at family events. (Tr. 17-18) Respondent was assigned to the 45th precinct, while Person A worked nearby at an automotive shop in the neighboring 49th precinct, so they would sometimes see each other and talk during work hours as well. (Tr. 17) Respondent claimed he was unaware of Person A's prior arrests. (Tr. 18, 29)

On May 11, 2012, Lieutenant Edward Gonzalez of the Internal Affairs Bureau ("IAB") had a department interview with Respondent regarding a Directed Accident Response Program ("DARP") investigation. During that interview, Respondent was questioned about his relationship with Person A, whose automotive shop was part of the investigation. No allegations were filed against Respondent in connection with the DARP matter; however, Respondent also was informed that Person A had been arrested for possessing two loaded firearms in his auto shop on August 26, 2011, and Respondent was instructed to discontinue his association with Person A. Specifically, the Lieutenant informed Respondent that it would be okay if he happened to be at a family function with Person A, such as a holiday event or a funeral, but that the two men should otherwise not socialize, and Respondent should take care not to be too "chummy-chummy" with Person A. (Tr. 19, 23, 32)

After his interview with IAB on May 11, 2012, Respondent did decrease his contact with Person A, though he said it was difficult to do so because of their close relationship. Since his command was so close to Person A's auto shop, Respondent was transferred to the 67th Precinct in Brooklyn, which also was a hardship since he resided in the Bronx. (Tr. 23-24)

Respondent acknowledged that despite the May 11, 2012 warning from IAB not to visit, call, or text Person A, and to avoid going by the auto shop, he continued to have such contact with Person A. On direct examination, Respondent testified to about eight phone contacts (Tr. 21), though on cross-examination he admitted to approximately 55 phone communications (calls and texts combined) between January 9, 2013 and February 9, 2013 alone. (Tr. 25) He also confirmed that he had been to Person A's home one or two

times; on one such occasion, Person A had called Respondent to come over and Respondent stayed with Person A for about 30-45 minutes. (Tr. 26-27) Even though he was transferred to a Brooklyn precinct, Respondent would still occasionally see Person A near the auto shop; Respondent's children attended school nearby leading to several chance encounters with Person A. (Tr. 20) Respondent stated that if he could do things differently, he "probably would have shut all contact off with (Person A)," which he finally did after a February 9, 2013 meeting with IAB. (Tr. 22-23)

PENALTY

In order to determine an appropriate penalty, Respondent's service record was examined. See *Matter of Pell v. Board of Education*, 34 NY 2d 222 (1974). Respondent was appointed to the Department on July 11, 2005. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

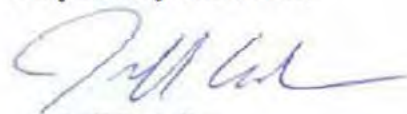
Section 203-10 (2) (c) of the Patrol Guide specifically prohibits members of the service from knowingly associating with any person who is "reasonably believed to be engaged in, likely to engage in, or to have engaged in criminal activities." Despite being instructed by IAB to avoid contact with Person A, Respondent continued to associate with Person A on the phone and in person. Respondent has pleaded guilty to this misconduct, and is seeking mitigation of the penalty proposed by the Department, which is forfeiture of thirty (30) vacation days and one year dismissal probation. After considering the evidence, including the testimony of Respondent, as well as Respondent's history, this tribunal is not persuaded that mitigation is warranted here.

In seeking mitigation, counsel stressed the hardship for Respondent in having to eliminate contact with Person A; even though they were not technically blood relatives, their relationship was extremely close over a 30-year period. This tribunal is mindful of the efforts Respondent did make to reduce his contact with Person A, which was difficult in light of the bond between the two of them. However, the Department was not oblivious to the nature of this relationship, as Lieutenant Gonzalez did allow for continued incidental contact with Person A at family events. Respondent, though, extended that contact beyond what was permissible, in direct contravention of the instructions he had received from IAB. There is no reasonable justification for having 55 phone communications with Person A in a one-month period after being specifically ordered not to do so. Respondent's belated recognition that he "probably should have cut off all contact" with Person A sooner isn't enough to justify mitigation here; more telling are his actions, his continued refusal to follow the Department's orders regarding associating with Person A.

Recent disciplinary cases have resulted in penalties consistent with that proposed by the Department here. In *Disciplinary Case No. 2013-10268 (May 13, 2015)*, a 27-year officer with two prior adjudications forfeited 30 vacation days and was placed on one-year dismissal probation for knowingly associating with a convicted felon, a mentor in the world of pigeon racing, after being ordered to discontinue the relationship. And in *Disciplinary Case No. 2010-0036 (January 4, 2013)*, a 17-year officer with one prior adjudication forfeited 30 vacation days and was placed on one-year dismissal probation for continuing to date and live with a woman who had a criminal record after the officer had been ordered to cease such contact.

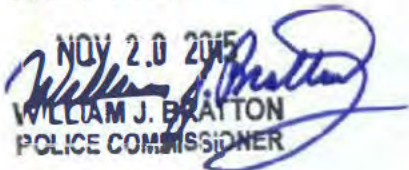
Here, Respondent's continued misconduct similarly warrants a period of monitoring. Taking into account the totality of circumstances, I recommend that the appropriate disciplinary penalty should be the forfeiture of thirty (30) vacation days. I further recommend that Respondent be DISMISSED from the New York City Police Department, but that his dismissal be held in abeyance for a period of one year, pursuant to Section 14-115 (d) of the Administrative Code, during which he remains on the force at the Police Commissioner's discretion and may be terminated at any time without further proceedings.

Respectfully submitted,



Jeff S. Adler
Assistant Deputy Commissioner - Trials

APPROVED

NOV 20 2015

WILLIAM J. BRATTON
POLICE COMMISSIONER

POLICE DEPARTMENT
CITY OF NEW YORK

From: Deputy Commissioner Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER HECTOR MARTINEZ
TAX REGISTRY NO. 938950
DISCIPLINARY CASE NO. 2013-10266

Respondent was appointed to the Department on July 11, 2005. In his last three annual evaluations he received an overall rating of 3.5 "Highly Competent/Competent."



For your consideration.



Jeff S. Adler
Assistant Deputy Commissioner Trials